

3. 9:00 AM CASE NUMBER: C25-03103
CASE NAME: CYLUS JASIAH MARTIN-HAREN, VS. LINDA CHU, M.D.
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

If either party challenges the tentative ruling, the CMC will proceed. If neither party challenges the tentative ruling, the CMC is continued to March 10, 2027, at 8:30 am in Department 10.

4. 9:00 AM CASE NUMBER: C26-00886
CASE NAME: TIJUANA JACKSON VS. MERCEDES-BENZ USA LLC, A LIMITED LIABILITY COMPANY
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

If either party challenges the tentative ruling, the CMC will proceed. If neither party challenges the tentative ruling, the CMC is continued to September 10, 2027, at 8:30 am in Department 10.

Law & Motion

5. 9:00 AM CASE NUMBER: C24-00180
CASE NAME: STACY SMITH VS. SHIFTMED, LLC
***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

The Court has reviewed the declaration of Natalie Hernandez and authorizes the release of the final 5% of the funds.

6. 9:00 AM CASE NUMBER: C24-02709
CASE NAME: MARIA SEREDKINA VS. PAVEL YEFENAU
***HEARING ON MOTION IN RE: STRIKE AND/OR TAX DEFENDANT PAVEL YEFANAU'S 4/1/26**
MEMORANDUM OF COSTS
FILED BY: MASCHMEIER, STUART

TENTATIVE RULING:

The Motion was withdrawn.

7. 9:00 AM CASE NUMBER: C24-02784
CASE NAME: CYNTHIA RODRIGUEZ VS. RICHMOND SANITARY SERVICE, INC.
***HEARING ON MOTION IN RE: LEAVE TO FILE CROSS COMPLAINT**
FILED BY: RICHMOND SANITARY SERVICE, INC.

TENTATIVE RULING:

The Motion for Leave to File Cross Complaint is unopposed. The Motion is **granted**. Defendant shall file the Cross Complaint within 5 business days and serve it with diligence.

8. 9:00 AM CASE NUMBER: C25-00751
CASE NAME: DEAN LANGSTON VS. GENERAL MOTORS, LLC
***HEARING ON MOTION IN RE: ATTORNEYS' FEES AND COSTS**
FILED BY: LANGSTON, DEAN
TENTATIVE RULING:

Plaintiff Dean Langston filed this Song-Beverly action on March 17, 2025 against General Motors, LLC. The case resolved at mediation on October 16, 2025, but Langston opted to seek fees through this Motion, filed April 27, 2026. GM opposes.

Discussion

Timeliness of Motion

GM first argues that the motion is untimely, under California Rule of Court 3.1702, because it was filed 193 days after settlement. Rule 3.1702 requires a Motion for Attorney's Fees within the same time frame as an appeal—here 180 days. While there was no judgment, the case did resolve by settlement. California Rule of Court 3.1385 required Langston to “immediately” file written notice of settlement. Langston failed to do so, instead waiting until April 23, 2026 to do so, which was 189 days later. As discussed in *Hatlevig v. General Motors LLC*, 118 Cal.App.644, 649-650, once plaintiff files a notice of settlement, the plaintiff *must* dismiss the case within 45 days unless there is good cause not to do so, pursuant to California Rule of Court 3.1385(b). The Motion for Attorney's fees is due no later than 180 days after that dismissal date. *Hatlevig* applied those deadlines even where the dismissal did not occur as it should have. Had Langston filed a Notice Settlement in a timely manner, the motion would have been due no later than 225 (45+180) days later. Assuming that “immediately” means the next day, the earliest date that the motion could have been untimely would therefore have been May 30, 2026. He filed April 28, 2026. Although in no way was Langston diligent, and certainly counsel was not compliant with Rule 3.1702, the Motion itself was not untimely.

Attorney's Fees

Rates

GM also takes issue with Plaintiff's proposed rates. GM presents only an unsubstantiated statement that Los Angeles attorney rates are higher than those of Contra Costa County. GM does not present any evidence of the rates it pays its own counsel. On this record, Langston has presented sufficient evidence to support his requested rates.

Billings

The fee amounts, however, are a different story. The Court agrees that counsel cannot recover the fees requested for these boilerplate actions. Use of the same complaint, meet and confer correspondence, and discovery materials is not necessarily disfavored; nor, however, does it merit fee